



POLICE DEPARTMENT

Jonathan Darche
Executive Director
New York City Civilian Complaint Review Board
100 Church Street, 10th floor
New York, NY 10007

August 4, 2021

POLICE COMMISSIONER'S PENALTY DEPARTURE

Re: CCRB Case No. 201906066 regarding Police Officer Joshua Acosta, Tax No. 955705 (DADS No. 2021-23675)

Dear Mr. Darche:

The Police Commissioner has reviewed the facts and circumstances in this matter in its entirety and determined that Police Officer Acosta's actions do not warrant a command discipline, but instead, call for Formalized Training. Officer Acosta performed a limited search of a room where an individual had, moments before, been arrested in connection with an armed robbery involving a firearm.

Officer Acosta responded to the location upon hearing an urgent radio request for additional units in order to assist in apprehending the suspect that had just been chased into a residence. After the suspect was handcuffed and removed, Officer Acosta briefly searched the area immediately around the arrest location, rather than securing the area and seeking a search warrant. While Officer Acosta's limited search was unauthorized, he did not receive any guidance from available supervisors at the scene and clearly engaged in his actions in good faith.

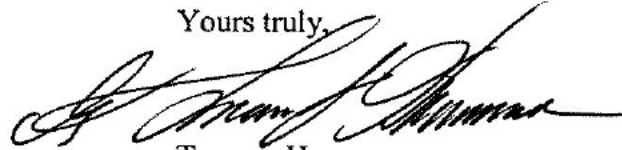
COURTESY • PROFESSIONALISM • RESPECT

Website: <http://nyc.gov/nypd>

Therefore, the Police Commissioner directs that Police Officer Acosta receive Training from the Legal Bureau in Patrol Guide Procedure 203-10 (Public Contact – Prohibited Conduct/Unlawful Search) and in Legal Bureau Bulletin Vol. 44, No. 2 (Exceptions to the Payton Rule).

If you have any questions, please feel free to contact me at [REDACTED]

Yours truly,

A handwritten signature in black ink, appearing to read "Terence Hurson", written in a cursive style.

Terence Hurson
Inspector
Executive Officer
Police Commissioner's Office